

IN THE HIGH COURT OF TANZANIA

MUSOMA SUB- REGISTRY

AT MUSOMA

MISC. CRIMINAL APPLICATION NO. 16779 OF 2026

*(Arising from Criminal Session Case No. 00002295 in the High Court Musoma Sub
Registry)*

AUGUSTINO MARKO SENDI @ CHONCHORI APPLICANT

VERSUS

THE REPUBLIC RESPONDENT

RULING

31st & 31st August 2026

M. L. KOMBA.:

This is a ruling in respect of the application for bail by above mentioned applicants. The application was brought by way of chamber summons made under section and section 151 (1) and (3) and 295 (4) of the CPA. Cap 20 RE 2023 of the Criminal Procedure Act, Cap 20 R.E 2023 while accompanied by affidavit sworn by applicant.

Applicant is charged with an offence of **Manslaughter contrary to Section 195 of the Penal Code** Cap. 16 R.E 2022 and was committed for trial to this court.

Knowing bail is his constitutional rights, applicant hired legal service of Advocate Emmanuel Gervas who appeared and submitted on his behalf. Respondent, the Republic was represented by Ms. Beatrice Mgumba, State Attorney.

Mr. Gervas submitted that applicant is under custody and he is praying for bail as per affidavit of applicant which he prayed to be adopted. He went on submitting that the offence charged with the applicant is bailable which is Manslaughter. From the records, applicant while in District Court was under bail and managed to observe bail conditions all the time till when he was committed to this court and District Court bail ended. He said bail is constitution right under Article 13(6) so far as applicant is not convicted, and he managed to observe bail condition when he was in subordinate court. He prayed for consideration of bail while waiting for preliminary Hearing in criminal session with reference No. 12190 of 2026.

Ms. Mgumba resisted the Application on the ground that it has no necessary attachment which is information and comital proceedings and order. She submitted that these are important documents. Failure to attach those documents deny applicant right to apply for bail as there is no assurance of the offence charged if it is bailable offence.

I am aware of the Judiciary of Tanzania Bail Guidelines issued by Hon, Chief Justice on 10th September 2020, item 3.2 of the Guidelines, the possibility that accused person may abscond bail, is one of the imperative factors to be considered in granting bail. Apart from guideline above, Article 13 (2) (b) of the Constitution and section 148 (1) of the Criminal Procedure Act are paramount in application like this at hand. Court may give any conditions which thinks fit for interest of justice and accountability of applicants. It should be noted that if the offence is bailable, then, bail conditions set must be reasonable unless for the serious offence, where the conditions must be stiff. Failure to fulfil conditions set, applicant will be deprived of his liberty. **See Francis Davis Mchacky & Ten Others V. Republic**, Misc Criminal Application No. 14 of 2022; **Salum Abeid Mbaya & Ten Others V. Republic**, Consolidated Misc. Economic Application Nos. 68 & 69 of 2019 and **Prof. Costa Ricky Mahalu & Another V. Attorney General** Mis Civil Cause No. 35 of 2007.

In the upshot while noting the law regulating bail under section 148 (1), (6) and 7 of the Criminal Procedure Act, I am enthused to grant bail to the applicant. However, in order to be released from custody, the applicants must fulfil the following conditions:

1. Each applicant should have two sureties, and one must be employee in any office and must be resident within Mara region;
2. Each sureties shall sign a bond of sum of Tanzanian Shillings three Million Only (3,000,000/=) as a security for appearance of the respective applicant in court.
3. One surety must have immovable property within Mara Region.
4. Each sureties should submit application letters and certified copies of identity cards from their respective employers and NIDA cards together with a letter from street leaders for unemployed sureties;
5. Each sureties shall undertake to make sure that applicant is available and enter appearance in court whenever required;
6. Applicant shall surrender his passport or any other travelling documents, if any, to the Deputy Registrar of this Registry;
7. Applicant shall report to the Deputy Registrar of this Registry every first Monday of every month and sign a specific register to prove their attendance;
8. Applicant shall not travel out of Mara Region without prior written leave of the Deputy Registrar of this Registry;

9. Applicant must enter appearance in court on every date when the case is scheduled for mention, hearing or any other order or direction of High Court;

The above ordered bail conditions shall be supervised and sureties certified by the Deputy Registrar of this Registry.

Ordered accordingly.




M. L. KOMBA
JUDGE